

Court No. - 29

Case :- WRIT - C No. - 25886 of 2019

Petitioner :- Guru Charan Singh

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Anupam Tripathi, Kapil Dev Singh Rathore

Counsel for Respondent :- C.S.C.

Hon'ble Pankaj Mithal, J.

Hon'ble Saral Srivastava, J.

Heard Sri Anupam Tripathi, learned counsel for the petitioner and Sri Kapil Dev Singh Rathore for respondent no. 2.

The petitioner has been served with a recovery citation dated 16.1.2019 for a sum of Rs. 2,57,018/- for realizing the arrears of electricity charges in respect of Tube-well.

The submission of learned counsel for the petitioner is that the bill of the electricity dues as raised by respondent no. 2 is incorrect and excessive and as such he could not pay the electricity charges.

If that be so, the petitioner has a remedy of getting the bill rectified and corrected by making appropriate application in accordance with Clause 6.5 of the U.P. Electricity Supply code, 2005 before the Executive Engineer.

In view of the aforesaid facts and circumstances, the writ petition is disposed of with liberty to the petitioner to approach the Executive Engineer for correction of the Electricity bill which the Executive Engineer shall consider and decide in accordance with law most expeditiously, if possible, within six weeks of its receipt.

The petition is disposed of.

Order Date :- 22.8.2019

SKS